Michigan AI Comprehensive Guide for Districts: Data and Student Privacy Passages

Excerpted verbatim from *Artificial Intelligence (AI) Comprehensive Guide for Districts (Michigan Department of Education)*. Page numbers match the document's own page numbering. Ellipses (…) mark omitted text.

Introduction (excerpt)

Source: page 3

By following these guidelines, administrators may help support safe, equitable, and effective AI use while maintaining educator oversight, protecting student privacy, and fostering transparency with stakeholders.

Essential Practices to Consider: Protect Privacy and Integrity

Source: page 3

- **Protect Privacy and Integrity**

Districts should be aware of and follow federal privacy and accessibility laws.

- Family Educational Rights and Privacy Act (FERPA) - Follow federal requirements for protecting students' education records. Useful resources include the U.S. Department of Education's FERPA overview and technical assistance tools.
- Children's Online Privacy Protection Act (COPPA) - For online tools and applications used with children under 13, ensure parental consent and proper data collection practices, following the Federal Trade Commission's COPPA FAQs: COPPA compliance guide.

Phase 0: Organize and Listen (excerpt)

Source: pages 4–5

- Designating a district AI lead. This might be the curriculum director, chief information officer, chief technology officer, or data privacy officer.
- Having the technology department inventory/register AI systems, owners, data, risk, etc.

Phase 1: Compliance and Risk Controls

Source: page 6

Districts may consider:

- Aligning organizational practices to NIST AI Risk Management Framework (RMF).
- Having an AI team review compliance with:
- FERPA
- COPPA
- Children's Internet Protection Act (CIPA)
- Cybersecurity and Infrastructure Security Agency (CISA)/K12 Security Information Exchange (SIX) cybersecurity baseline.

Phase 2: Instructional Guardrails and Considerations (excerpt)

Source: page 7

- Posting classroom AI norms (student disclosure, privacy, verification, fairness, age-appropriate use).

Phase 2: Procurement and Vendor Due Diligence

Source: page 8

Districts may consider updating a request for proposal template to include an expanded vendor questionnaire covering AI-specific requirements. This may include:

- Model cards: model cards provide standardized documentation that describes an AI model's intended use, training data sources, performance, limitations, and known risks. Model cards help the district verify whether a vendor's AI system is appropriate, transparent, and safe for district use.
- Data sources and licensing: information on where AI model training data originated, whether it is lawfully obtained, and whether it includes proprietary or sensitive material.
- Privacy terms: how data is stored, protected, and used within the system.
- Data retention and deletion policies: how long the system retains data, and the processes for securely deleting it.
- Right to audit provisions: the district's ability to review vendor practices, documentation, and controls to ensure compliance.

Districts may consider utilizing AI tool evaluations.

Phase 2: Suggested Deliverables (excerpt)

Source: page 9

- Updated procurement documents and contract clauses.

Phase 3: Community Communications (excerpt)

Source: page 10

- Sharing on the district website what the district will/won't do regarding AI privacy, human oversight, and age safeguards.

Potential AI Implementation Measures of Success (excerpt)

Source: page 11

- Privacy and security: Zero advertising/secondary uses, incident rates, AIA completion for risk (if used)